

COMMITTEE ON HEALTH AND HUMAN SERVICES
SENATE AMENDMENTS TO H.B. 2248
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 6, article 4.2, Arizona Revised
3 Statutes, is amended by adding section 36-683, to read:

4 36-683. Medical interventions; prohibition; applicability;
5 enforcement; definitions

6 A. A BUSINESS ENTITY DOING BUSINESS IN THIS STATE MAY NOT:

7 1. REFUSE TO PROVIDE ANY SERVICE, PRODUCT, ADMISSION TO A VENUE OR
8 TRANSPORTATION TO A PERSON BECAUSE THAT PERSON HAS OR HAS NOT RECEIVED OR
9 USED A MEDICAL INTERVENTION.

10 2. REQUIRE ANY MEDICAL INTERVENTION AS A TERM OF EMPLOYMENT UNLESS
11 THE TERMS OF EMPLOYMENT INCLUDE TRAVEL TO A FOREIGN JURISDICTION REQUIRING
12 A MEDICAL INTERVENTION AS THE ONLY MEANS OF ENTRY OR REQUIRE ENTRY INTO A
13 PLACE OF BUSINESS OR FACILITY IN A FOREIGN JURISDICTION AND THAT PLACE OF
14 BUSINESS OR FACILITY REQUIRES A MEDICAL INTERVENTION AS THE ONLY MEANS OF
15 ENTRY. IF AN EMPLOYEE IS REQUIRED TO RECEIVE OR USE A MEDICAL
16 INTERVENTION DUE TO TRAVEL TO A FOREIGN JURISDICTION OR ENTRY INTO A PLACE
17 OF BUSINESS OR FACILITY IN A FOREIGN JURISDICTION, THE MEDICAL
18 INTERVENTION REQUIREMENT SHALL BE INCLUDED IN EITHER A VALID WRITTEN
19 EMPLOYMENT CONTRACT BETWEEN THE EMPLOYER AND THE EMPLOYEE OR, IF A WRITTEN
20 EMPLOYMENT CONTRACT DOES NOT EXIST, AN ADVANCE WRITTEN NOTICE THAT IS
21 PROVIDED TO THE IMPACTED EMPLOYEE AT LEAST FOURTEEN DAYS BEFORE THE
22 EMPLOYEE IS REQUIRED TO RECEIVE OR USE THE MEDICAL INTERVENTION. THIS
23 PARAGRAPH DOES NOT APPLY TO BUSINESS ENTITIES THAT RECEIVE MEDICARE OR
24 MEDICAID FUNDING.

25 B. A TICKET ISSUER MAY NOT PENALIZE, DISCRIMINATE AGAINST OR DENY
26 ACCESS TO AN ENTERTAINMENT EVENT BY A TICKET HOLDER BECAUSE THE TICKET
27 HOLDER HAS OR HAS NOT RECEIVED OR USED A MEDICAL INTERVENTION.

28 C. A SCHOOL OPERATING IN THIS STATE MAY NOT REQUIRE A MEDICAL
29 INTERVENTION FOR ANY PERSON TO ATTEND THE SCHOOL, ENTER A CAMPUS OR

1 BUILDING OR BE EMPLOYED, SUBJECT TO THE PARENTS' BILL OF RIGHTS PRESCRIBED
2 IN SECTION 1-602[, UNLESS EITHER:
3 1. THE PERSON IS A STUDENT WHO IS PROHIBITED FROM ATTENDING SCHOOL
4 PURSUANT TO SECTION 15-873.
5 2. THE PERSON HAS ANY OF THE FOLLOWING INFECTIONS OR INFESTATIONS
6 AND THE RISK OF SPREADING THE INFECTION OR INFESTATION IS NOT YET
7 SUFFICIENTLY MITIGATED ACCORDING TO RULES ADOPTED BY THE DEPARTMENT:
8 (a) ACUTE CONJUNCTIVITIS.
9 (b) A PEDICULOSIS INFESTATION.
10 (c) A SCABIES INFESTATION.
11 (d) A STREPTOCOCCAL GROUP A INFECTION WITH STREPTOCOCCAL LESIONS OR
12 STREPTOCOCCAL SORE THROAT].
13 D. A BUSINESS ENTITY OPERATING IN THIS STATE MAY NOT REQUIRE A
14 MEDICAL INTERVENTION FOR ANY PERSON TO ATTEND, ENTER THE BUSINESS ENTITY'S
15 BUILDING OR PREMISES OR BE EMPLOYED.
16 E. A STATE, COUNTY OR LOCAL GOVERNMENT ENTITY OR OFFICIAL IN THIS
17 STATE MAY NOT REQUIRE ANY PERSON:
18 1. TO RECEIVE OR USE A MEDICAL INTERVENTION.
19 2. TO RECEIVE OR USE A MEDICAL INTERVENTION AS A CONDITION OF ANY
20 OF THE FOLLOWING:
21 (a) RECEIVING ANY GOVERNMENT BENEFIT.
22 (b) RECEIVING ANY GOVERNMENT SERVICE.
23 (c) RECEIVING ANY GOVERNMENT-ISSUED LICENSE OR PERMIT.
24 (d) ENTERING ANY BUILDING.
25 (e) USING TRANSPORTATION.
26 3. TO RECEIVE OR USE A MEDICAL INTERVENTION AS A TERM OF
27 EMPLOYMENT.
28 F. A BUSINESS ENTITY OR A STATE, COUNTY OR LOCAL GOVERNMENT IN THIS
29 STATE MAY NOT PROVIDE OR OFFER ANY DIFFERENT SALARY, HOURLY WAGE OR OTHER
30 ONGOING COMPENSATION OR BENEFIT TO AN EMPLOYEE BASED ON WHETHER THE
31 EMPLOYEE HAS OR HAS NOT RECEIVED OR USED A MEDICAL INTERVENTION.
32 G. THE MEDICAL INTERVENTION PROHIBITIONS PRESCRIBED IN THIS SECTION
33 DO NOT APPLY TO ANY SITUATION IN WHICH PERSONAL PROTECTIVE EQUIPMENT,
34 ITEMS OR CLOTHING ARE REQUIRED BY EMPLOYERS IN THE PUBLIC OR PRIVATE
35 SECTOR BASED ON EXISTING TRADITIONAL AND ACCEPTED INDUSTRY STANDARDS OR
36 FEDERAL LAW. THIS SUBSECTION DOES NOT APPLY TO OR INCLUDE ANY VACCINE,
37 MASK REQUIREMENT OR OTHER MEDICAL INTERVENTION THAT WAS INTRODUCED DURING
38 THE COVID-19 PANDEMIC.
39 H. THIS SECTION MAY BE ENFORCED AND INJUNCTIVE RELIEF MAY BE
40 PURSUED BY EITHER THE ATTORNEY GENERAL OR THE PROSECUTING ATTORNEY FOR THE
41 COUNTY WHERE A VIOLATION OCCURS. IF A BUSINESS ENTITY OR STATE, COUNTY OR
42 LOCAL GOVERNMENT ENTITY IN THIS STATE IS FOUND TO HAVE VIOLATED ANY
43 PROVISION OF THIS SECTION, THE ATTORNEY GENERAL OR PROSECUTING ATTORNEY,
44 AS APPLICABLE, SHALL BE AWARDED ATTORNEY FEES AND COSTS INCURRED IN
45 PURSUING THE ENFORCEMENT ACTION.
46 I. FOR THE PURPOSES OF THIS SECTION:
47 1. "BUSINESS ENTITY":

1 (a) MEANS ANY PERSON OR GROUP OF PERSONS THAT PERFORMS OR ENGAGES
2 IN ANY ACTIVITY, ENTERPRISE, PROFESSION OR OCCUPATION FOR GAIN, BENEFIT,
3 ADVANTAGE OR LIVELIHOOD, WHETHER FOR PROFIT OR NOT-FOR-PROFIT IN THIS
4 STATE.

5 (b) INCLUDES THE FOLLOWING:

6 (i) ANY SELF-EMPLOYED INDIVIDUAL, SOLE PROPRIETORSHIP, DOMESTIC
7 CORPORATION, ASSOCIATION, LIMITED LIABILITY COMPANY, LIMITED LIABILITY
8 PARTNERSHIP, BUSINESS TRUST, FOREIGN CORPORATION, FOREIGN LIMITED
9 PARTNERSHIP OR FOREIGN LIMITED LIABILITY COMPANY THAT IS AUTHORIZED TO
10 TRANSACT BUSINESS IN THIS STATE.

11 (ii) ANY BUSINESS ENTITY THAT POSSESSES A BUSINESS LICENSE, PERMIT,
12 CERTIFICATE, APPROVAL, REGISTRATION, CHARTER OR SIMILAR FORM OF
13 AUTHORIZATION ISSUED BY THIS STATE.

14 (iii) ANY BUSINESS ENTITY THAT IS EXEMPT BY LAW FROM OBTAINING A
15 BUSINESS LICENSE.

16 (iv) ANY BUSINESS ENTITY OPERATING UNLAWFULLY IN THIS STATE WITHOUT
17 A REQUIRED BUSINESS AUTHORIZATION.

18 2. "FOREIGN JURISDICTION" MEANS ANY STATE, COMMONWEALTH, COUNTRY,
19 OR NATION OUTSIDE THIS STATE.

20 3. "MEDICAL INTERVENTION" MEANS A MEDICAL PROCEDURE, TREATMENT,
21 DEVICE, DRUG, INJECTION, MEDICATION OR MEDICAL ACTION TAKEN TO DIAGNOSE,
22 PREVENT OR CURE A DISEASE OR ALTER THE HEALTH OR BIOLOGICAL FUNCTION OF A
23 PERSON.

24 4. "SCHOOL":

25 (a) MEANS ANY LEGAL ENTITY IN THIS STATE THAT PROVIDES INSTRUCTION
26 TO STUDENTS IN PRESCHOOL PROGRAMS, KINDERGARTEN PROGRAMS, ANY OF GRADES
27 ONE THROUGH TWELVE, CAREER AND TECHNICAL EDUCATION PROGRAMS, VOCATIONAL
28 PROGRAMS OR POSTSECONDARY EDUCATION.

29 (b) INCLUDES ANY PUBLIC SCHOOL, PRIVATE SCHOOL, PAROCHIAL SCHOOL OR
30 POSTSECONDARY EDUCATIONAL INSTITUTION.

31 (c) DOES NOT INCLUDE TRIBAL COLLEGES.

32 5. "TICKET ISSUER":

33 (a) MEANS AN INDIVIDUAL OR ENTITY THAT PROVIDES TICKETS TO AN
34 ENTERTAINMENT EVENT.

35 (b) INCLUDES:

36 (i) THE OPERATOR OF THE VENUE WHERE AN ENTERTAINMENT EVENT OCCURS.

37 (ii) THE SPONSOR OR PROMOTER OF AN ENTERTAINMENT EVENT.

38 (iii) A SPORTS TEAM THAT IS PARTICIPATING IN AN ENTERTAINMENT EVENT
39 OR A LEAGUE WHOSE TEAMS ARE PARTICIPATING IN AN ENTERTAINMENT EVENT.

40 (iv) A THEATER COMPANY, MUSICAL GROUP OR SIMILAR ENTITY THAT IS
41 PARTICIPATING IN AN ENTERTAINMENT EVENT.

42 (v) AN AGENT OF ANY INDIVIDUAL OR ENTITY DESCRIBED IN THIS
43 PARAGRAPH.

Senate Amendments to H.B. 2248

- 1 Sec. 2. Short title
- 2 This section may be cited as the "Arizona Medical Freedom Act."
- 3 Enroll and engross to conform
- 4 Amend title to conform

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